

Florida Condo Law

What Seaspray Owners Should Know

WHY THIS MATTERS

Many Florida condominium statutes are designed to protect owners through transparency, access to information, safety requirements, education, and accountability. Board members should understand those requirements and also communicate them clearly to the owners they represent. A statute may require action, but depending on the issue, the board may still have choices about how that requirement is implemented and how the change is explained.

ELECTION QUICK FACTS

PROXIES

Generally may not be used to elect residential condominium directors.

20% TURNOUT

At least 20% of eligible voters must cast ballots for a valid election.

E-VOTING

A 25% owner petition can require electronic voting for the next election.

[§ 718.112](#) | [§ 718.128](#)

MEETINGS

Open meetings & owner participation

Associations with more than 10 units must meet at least quarterly. Owners may attend open meetings, speak on agenda items, and regularly ask questions about repairs, finances, and other condominium issues.

OWNER TAKEAWAY: *Owners should have regular opportunities to hear from the board and ask questions.*

[§ 718.112\(2\)\(c\)](#)

OWNER INQUIRIES

Written inquiries require a response

A written inquiry sent by certified mail generally requires a written response within 30 days, or notice that legal or DBPR guidance has been requested, followed by a substantive response within the statutory timeframe.

OWNER TAKEAWAY: *Formal owner concerns have a defined response process.*

[§ 718.112\(2\)\(a\)2.](#)

OFFICIAL RECORDS

Records access has firm deadlines

Official records generally must be made available within 10 working days after a proper written request. The association must provide a checklist identifying records produced and records not provided.

OWNER TAKEAWAY: *Owners have meaningful tools to understand spending, contracts, and association operations.*

[§ 718.111\(12\)\(b\)-\(c\)](#)

ONLINE ACCESS

More records must be available online

Associations managing 25 or more non-timeshare units must maintain a website or mobile app with specified records, including governing documents, budgets, financial reports, contracts, minutes, inspection reports, and SIRS materials.

OWNER TAKEAWAY: *Important information should be easier to access without a formal records request every time.*

[§ 718.111\(12\)\(g\)](#)

BOARD EDUCATION

Director education is mandatory

Residential condominium directors must complete at least 4 hours of approved education. Beginning one year later, directors must also complete at least 1 hour of continuing education each year.

OWNER TAKEAWAY: *Board members are expected to stay informed as Florida condominium law evolves.*

[§ 718.112\(2\)\(d\)5.b.](#)

ELECTIONS

Board elections follow specific procedures

Residential board elections generally use written ballots or voting machines, not proxies. At least 20% of eligible voters must cast ballots for a valid election, and a 25% owner petition can require electronic voting for the next election.

OWNER TAKEAWAY: *Election rules are more structured than many owners realize, and turnout matters.*

[§ 718.112\(2\)\(d\)5.a.](#) | [§ 718.128\(6\)](#)

Financial & Property Rules

What Can Directly Affect Seaspray Owners

WHY PAGE 2 MATTERS

Seaspray is a three-story residential condominium. That places it within the height category addressed by Florida's milestone-inspection and SIRS statutes, subject to building age and other statutory conditions.

MILESTONE INSPECTIONS

Three-story buildings are within the milestone-inspection framework

A residential condominium building that is 3 habitable stories or higher generally requires a milestone inspection by the end of the year it reaches 30 years of age, and every 10 years thereafter.

OWNER TAKEAWAY

Seaspray is within the height category covered by the statute, subject to building age and other statutory conditions.

OWNER WATCHPOINT

Know the certificate-of-occupancy date, whether an inspection has been completed, and when the next one is due.

[§ 553.899\(3\)](#)

SIRS

Three-story buildings are also within the SIRS framework

Residential associations must complete a Structural Integrity Reserve Study at least every 10 years for each building that is 3 habitable stories or higher. The study addresses major components, useful life, expected costs, and reserve funding.

OWNER TAKEAWAY

SIRS can directly affect long-term reserve planning and future owner costs.

OWNER WATCHPOINT

Review the latest study, the components identified, and the recommended funding plan.

[§ 718.112\(2\)\(g\)](#)

RESERVE FUNDING

Structural reserve obligations can affect assessments and borrowing

SIRS-related obligations may be funded through regular assessments, special assessments, lines of credit, or loans. Certain funding choices require approval by a majority of the total voting interests.

OWNER TAKEAWAY

Reserve planning can directly affect owner cash flow and future assessments.

OWNER WATCHPOINT

Understand whether current reserves are on track and whether assessments or borrowing are being considered.

[§ 718.112\(2\)\(f\)2.c.](#)

INSURANCE

Insurance and deductibles can create substantial owner exposure

Associations must maintain adequate property insurance, and replacement cost must be determined at least every 3 years. Deductibles and uninsured losses can become common expenses affecting budgets and owner assessments.

OWNER TAKEAWAY

Premiums, deductibles, and uninsured losses can materially affect annual owner costs.

OWNER WATCHPOINT

Know the major deductibles, replacement-value assumptions, and significant uninsured exposures.

[§ 718.111\(11\)](#)

ASSESSMENTS

Special assessments and large budget increases carry notice rules

A nonemergency special-assessment meeting generally requires at least 14 days' notice stating the estimated cost and purpose. Certain large budget increases also trigger additional statutory budget procedures.

OWNER TAKEAWAY

Large financial decisions require advance notice and added transparency.

OWNER WATCHPOINT

Look for clear notice explaining why an assessment is needed, its estimated cost, and the proposed funding plan.

[§ 718.112\(2\)\(c\)1.](#) | [§ 718.112\(2\)\(e\)2.](#)

RESALE & LITIGATION

Resales include financial, structural, and litigation disclosures

Resale buyers must receive the current budget, annual financial statement, FAQ, and applicable milestone/SIRS information. The FAQ must identify court cases in which the association is a party and may face liability exceeding \$100,000.

OWNER TAKEAWAY

Litigation, structural issues, and financial conditions can affect financing, marketability, and resale value.

OWNER WATCHPOINT

Confirm required resale documents are current and whether any association litigation meets the statutory disclosure threshold.

[§ 718.503\(2\)](#) | [§ 718.504](#)